

SOLAR SITE & OPERATIONS QUESTIONS

Questions that reveal how the project may affect the land during construction and decades of operation

Use these questions with the developer and your advisers before site-control terms become fixed.

SITE PLAN & FOOTPRINT

1. What exact acreage is inside the project boundary, and what acreage remains outside it?
2. Where will panels, inverters, batteries, collection lines, roads, substations, laydown yards, fencing, and setbacks be located?
3. Can facilities or access routes be moved later without landowner consent?
4. What buffers apply to homes, roads, waterways, timber, wells, livestock areas, and neighboring property?

CONSTRUCTION & ACCESS

5. What roads will be built or widened, and who maintains them during construction and operation?
6. What notice is required before entry, testing, heavy hauling, grading, trenching, or temporary workspace use?
7. How will gates, fences, livestock, crops, drainage, erosion, dust, noise, mud, and damaged improvements be handled?
8. What construction hours, traffic routes, staging areas, and restoration standards will apply?

UTILITIES, WATER & DRAINAGE

9. Where will transmission/interconnection facilities and underground or overhead lines be placed?
10. Will the project change drainage patterns, stormwater flow, culverts, ponds, irrigation, wells, or water access?
11. Who is responsible for drainage failures, erosion, sediment, flooding, or downstream impacts caused by the project?

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Operations, assignment, end-of-term obligations, and landowner protections

OPERATIONS & MAINTENANCE

12. Who will operate and maintain the project, and what standards apply to vegetation, weeds, pests, fencing, security, and road maintenance?
13. What chemicals, herbicides, lubricants, fuels, battery materials, or other substances may be used or stored on site?
14. What emergency-response plan applies to fire, severe weather, battery incidents, spills, trespass, or equipment failure?
15. Will the landowner receive notice of material incidents, regulatory violations, shutdowns, or major repairs?

ASSIGNMENT, EXPANSION & OTHER USES

16. Can the developer assign the lease or financing rights without consent, and what qualifications must a replacement operator meet?
17. Can the project add battery storage, generation, transmission, telecom, or other uses without a new agreement and compensation?
18. What rights remain for farming, grazing, hunting, timber, minerals, residences, roads, utilities, and future development outside the project area?

DECOMMISSIONING & RESTORATION

19. Who must remove panels, foundations, roads, wiring, batteries, fencing, and other improvements at the end of the project?
20. What restoration standard applies to soil, drainage, topsoil, compaction, vegetation, roads, fences, and agricultural productivity?
21. Is there a bond, letter of credit, escrow, parent guaranty, or other security for decommissioning, and when is it funded and updated?
22. What happens if the project is abandoned, partially removed, insolvent, or left inactive for an extended period?

DOCUMENTS / ANSWERS STILL NEEDED